

Lone Star Roadside LLC
OWNER OPERATOR AGREEMENT

This Agreement entered into by and between Lone Star Roadside LLC with its principal offices in Odessa, Texas ("CARRIER") and Edar Gadiel Villareal Rocha (OWNER).

This Agreement is entered into between OWNER, as the owner or operator of certain commercial motor vehicle equipment, and CARRIER, as an authorized for-hire motor carrier, pursuant to the Federal leasing regulations under 49 C.F. R. Part 376. In performing services under this Agreement, OWNER, except as otherwise required by applicable laws and regulations, shall direct the operation of equipment in all respects and shall determine the method, means, and manner of performance of this Agreement including, but not limited to, such matters as choice of routes, points of service of equipment, and rest stops. OWNER must comply with all Federal and State regulations material to performance of their functions as independent contractors. The relationship between OWNER and CARRIER shall be that of independent contractor including owner operator as defined by Texas Statute or as subsequently amended.

1. **VEHICLES**. OWNER hereby delivers to CARRIER the following described vehicle or vehicles (the "Equipment"). OWNER represents and warrants that OWNER has title to or is authorized to contract the Equipment and services to CARRIER. Upon execution of this Agreement, CARRIER shall execute and furnish OWNER a receipt for Equipment, which shall constitute the receipt required by 49 C.F.R. S 376.11(b):

Tractor No.	Year	Vehicle Make	Serial (VIN) No.	Tag No.
1045	2008	PETERBILT	1XPHD49X68D746888	R796557

Trailer NO.	year	Vehicle Make	serial (VIN) No.	Tag No.

2. **Settlement.** In consideration for the OWNER's obligation to provide the Equipment and to provide a driver qualified to operate the Equipment pursuant to 49 C.F.R. Part 391 and CARRIER's qualification standards (the "Driver" or "Operator"), CARRIER agrees to pay OWNER the settlement set forth in Exhibit A, and such settlement shall constitute the total settlement for everything furnished, provided or done by OWNER in connection with this Agreement, including the provision of driver services. CARRIER reserves the right to offer to OWNER, at CARRTER's sole discretion,
- a higher settlement percentage on a load-by-load basis and to offer a bonus based upon criteria set forward in an Addendum to this Agreement. Although CARRIER shall exercise reasonable efforts to make

shipments available to OWNER for transportation, OWNER acknowledges and agrees that CARRIER does not guarantee any specific number of shipments. OWNER agrees, acknowledges and requests that the CARRIER provide a trailer with all safety, operation and any other appliances thereto to the OWNER, and that the cost of providing said trailer, with all safety, operation and any other appliances or devices thereto shall be borne and incurred by OWNER as a portion of Exhibit A entitled "Share of Revenue." OWNER may provide his or her own trailer upon written request, but in which case said trailers must be operated and maintained in compliance With Federal and State laws and regulations. If an OWNER provided trailer(s) is not in compliance with any State and/or Federal law and/or regulations as determined solely by the CARRIER, the CARRIER reserves the sole right to forbid and/or direct the OWNER not to use said trailer(s) in connection with thus Agreement.

3. **SETTLEMENT PROCESS.** CARRIER agrees to make normal settlement payments due and owing to the OWNER, less the amount of any advances previously made to the OWNER or other authorized deductions under this Agreement, within 15 days after the submission of the driver logs and those documents necessary for CARRIER to secure payment from Its customers, including but not limited to, receipts for vehicle maintenance and repairs; fuel receipts; tolls; and, monthly and quarterly vehicle maintenance reports. At the

time of settlement, CARRIER shall provide the OWNER a detailed list of each rated freight bill included in that settlement. CARRIER shall have the right to delete the name of shipper and consignee plus any other data not pertinent to the settlement on any freight bill copy it provides to the OWNER. OWNER may also examine CARRIER's tariffs, contracts or other documents, If any, from which charges and rates are computed; provided, however, only that information that would appear on a rated freight bill will be disclosed by CARRIER. CARRIER shall have the right to review all of OWNER's documents and records related to the use of the equipment and the services provided under this Agreement, and OWNER agrees to provide CARRIER With access to such documents and records upon reasonable request.

4. **LENGTH OF AGREEMENT.** This Agreement shall begin on the date set forth at the end of this agreement and shall be effective for a period of thirty (30) days, which period shall be automatically renewed unless cancelled by either party by giving one (1) day written notice to the other party either personally, by mail, or by fax machine at the address or fax number shown at the end of this Agreement. OWNER shall, upon the termination of this Agreement, remove all of CARRIER's identification from the equipment and promptly return it to CARRIER, via hand delivery or certified mail, together with all of CARRIER's property, including trailers, gear, paperwork, and

cargo, to the CARRIER's facility as directed by CARRIER. If OWNER fails to return CARRIER's property to CARRIER or immediately remove and return all of CARRIER's identification from the equipment upon termination of this agreement, OWNER shall pay CARRIER, or allow CARRIER to deduct from OWNER's settlement for services rendered as an independent contractor and or owner/operator all collection costs Incurred by CARRIER, including reasonable attorney fees, to recover such property, and CARRIER may pursue all other remedies allowed by law or authorized in this Agreement against OWNER.

5. **USE.** The parties agree and understand that this instrument creates a contract only and that CARRIER acquires no ownership or title to the Equipment. CARRIER may use the equipment in Its motor transportation operation conducted under authority of the various regulatory commissions of the State and Federal government and may also use the Equipment in connection with other interchange or lease arrangements entered into by CARRIER with other motor carriers or subcontractors. CARRIER shall assume,

for the duration of this agreement only, exclusive possession, control, use and complete responsibility for operation of the equipment; provided, however, such use

and control shall be confined to the minimum extent necessary to meet the requirements of applicable federal and state Laws and/or regulations, and for no

other purpose whatsoever. This provision set forth solely to conform to U.S Department of Transportation ("DOT") regulations and shall not be used for any other purposes, including any attempt to classify OWNER or any driver provided by OWNER as an employee of the CARRIER.

6. **INSIGNIA**. During the term of this Agreement, OWNER agrees to maintain all equipment used in the furtherance of this Agreement, including both the tractor, trailer, and any trailer furnished by CARRIER In a fully clean and presentable condition, with markings, colors, and paint condition consistent with those that existed at the inception of this agreement. CARRIER shall furnish and attach (by painting or otherwise) all identifying markings for such equipment, and OWNER agrees that only those markings, Insignias, slogans furnished by CARRIER, and no others, shall be attached to the equipment during the term of this agreement. CARRIER shall have the right, upon cancellation of this agreement, to have its employees' sand-out, or paint over with a brush, any signs or insignia identifying this equipment with CARRIER's operations. CARRIER employees are hereby authorized by OWNER to accomplish removal of identification and to remove from Equipment of OWNER any and all mud flaps, papers, cards, copies of certificates and materials that are identifying of CARRIER, Including State Regulatory Licenses, Fuel Permits and Cab Cards, issued in the name of CARRIER. Earned settlement payments may be retained until such removals have been completed to the satisfaction of CARRIER or until CARRIER receives written certification from OWNER that all insignia has been removed.
7. **BLOWER OR "WET LINE" KIT**. When necessary, OWNER agrees to purchase, from a vendor of OWNER's choice, a discharge blower or "wet line" kit and to mount and maintain it on the equipment at OWNER's sole expense.
8. **Maintenance**. OWNER shall provide and continuously maintain the equipment in good, safe, serviceable and efficient operating condition in all respects at its expense, and shall bear and pay all expenses of operations of said Equipment, including particularly, but without limitations, the cost of all fuels, lubricants, Oils, parts, repairs, accessories, tires, tubes, safety equipment, equipment and vehicle licenses, and any and all federal and state governmental and regulatory bodies' taxes and permits required for the equipment whether based or assessed upon OWNER or CARRIER. in order to ensure

compliance with all DOT regulations, OWNER shall, at its sole cost and expense, make the Equipment available for inspection by CARRIER upon reasonable request by CARRIER. OWNER further agrees to supply CARRIER With continuous six (6) month maintenance records during the term of this Agreement.

9. **DRIVER QUALIFICATION, APPEARANCE AND BEHAVIOR.** OWNER shall provide competent drivers who meet CARRIER's minimum driver qualification standards and all of the requirements of the DOT, including but not limited to, familiarity and compliance with state and federal motor carrier safety laws and regulations. CARRIER and OWNER agree presenting a professional image is important to the accomplishment of their mutual business purposes. Accordingly, OWNER agrees all drivers will dress appropriately, wear personal protective gear (hard hats, safety glasses, divisibility safety vests, steel toed boots, safety harnesses, etc.) where required during loading and unloading, behave in a professional manner and comply with all safety and operational rules and regulations Issued by CARRIER or its customers. OWNERS and their drivers are free to air grievances with the Terminal Manager at their home terminal. Arguments and disagreements with the customers will not be tolerated, and will be grounds for immediate termination of this agreement.
10. **RELIABILITY.** Because of the nature of CARRIER's business, the timely arrival for loading and delivery of shipments accepted for transport by OWNER or its drivers is essential. Unreliability of OWNERS, drivers or equipment will be grounds for immediate termination of this agreement. CARRIER reserves the right, in its sole discretion, to determine what types of performance or misconduct constitute unreliability on the part of the OWNER.
11. **LICENSES PERMITS AND FEES.** OWNER agrees to obtain and bear the expense of the state license taxes, cab cards, fuel permits, over-dimensional or bridge permits, registration fees, inspection fees, and any necessary road tax plates issued in CARRIER'S name, as may be required by the state of Texas, or by any other state in which OWNER conducts transport activities for CARRIER.
12. **OPERATION.** OWNER's obligation under this agreement is to furnish to CARRIER a complete transportation service, including as may be necessary loading and unloading of the equipment, of the property tendered for transportation, from origin to destination, by a manner and means and over routes and in accordance with a schedule selected by OWNER and with respect to all trips offered to OWNER by CARRIER and which are accepted by

OWNER. This agreement does not obligate OWNER to accept for transportation every,

or any, trip offered by CARRIER to OWNER. It is agreed that no additional fees shall be paid for loading and unloading the equipment. CARRIER and OWNER agree this agreement does not create an employee- employer relationship between CARRIER and OWNER, or any of OWNER' s drivers. OWNER recognizes that in instances where OWNER (or its drivers) performs the driving and hauling operation of equipment, that neither OWNER nor any of OWNER's drivers is an "employee" of CARRIER, as defined in the State and Federal laws regarding wage and hour and worker's compensation laws, and settlement payments made to OWNER are not "wages" as defined by the Internal Revenue Laws of the United States. The parties agree that OWNER is also not an agent, partner,

or joint venture with CARRIER and CARRIER is only interested in the results of OWNER's performance under this agreement. OWNER recognizes that instances where OWNER contracts with another driver to perform the driving and hauling operations of equipment, that driver is not an "agent", "servant", employee" of CARRIER, as defined by the Federal and State laws regarding wage and hour, worker's compensation insurance, and payment of withholding and social security taxes, and that the OWNER is responsible for compliance with such laws and regulations.

The OWNER shall furnish a driver for each unit, but CARRIER shall have the right to disapprove the use of any drivers including the OWNER, if such driver's safety record is unsatisfactory; or for any other reason that, CARRIER's sole discretion, would detrimentally affect CARRIER. As required by the Department of Transportation ("DOT"), CARRIER maintains safety records based on reports from the Division of Motor Vehicles ("DMV") as well as through its own internal safe driving reporting procedures. CARRIER reserves the right to terminate this agreement without advance notice to OWNER if, in CARRIER's determination, OWNER or its driver has operated or maintained CARRIER's equipment in an unsafe manner, the DMV record reflects a moving violation within the last twelve (12) months, or if OWNER or the driver has had more than one reportable instance of unsafe driving (as determined by CARRIER's internal safety procedures) within any twelve (12) month period.

OWNER agrees to maintain a drug free workplace and CARRIER reserves the right to require OWNER or its employees to submit to random drug testing not in conflict with local, state and Federal regulations.

OWNER assumes the responsibility of the reporting, withholding and payment of any taxes due on wages of drivers (including OWNER himself when acting as driver) used on the equipment. OWNER is to pay the driver's salaries and all taxes, state or Federal, based on wages. Furthermore, none of the benefits provided by CARRIER to its employees, including unemployment Insurance, and/or worker's compensation coverage will be available to OWNER or his drivers, agents, employees, or servants. OWNER agrees to defend, indemnify and hold CARRIER harmless against any claims, suits, actions, demands, fines, penalties, costs or expense, including attorney fees incurred in protecting CARRIER's interest, related to any claim brought by OWNER or its driver alleging an employment relationship, any claim from a Federal, state or local government agency seeking payment of any tax or other assessment related to OWNER or its driver, or any other matter pertaining to the employment status of OWNER or its driver or any other worker utilized by OWNER. The parties agree that OWNER's indemnification obligations under this provision shall survive the termination of this agreement.

13. **FINES OR ASSESSMENTS.** In the event the OWNER, or its drivers or employees shall violate any applicable laws, rules or regulations of all Federal and State governmental and regulatory bodies, or no late pertinent State or Federal laws, and as a result thereof, CARRIER is fined or assessed, OWNER will reimburse CARRIER for such fine or assessment and all expense in connection therewithin. Notwithstanding the above, except with a violation results from the acts or omissions of OWNER, CARRIER shall assume the risk and cost of fines for overweight and over-sized trailers when such trailers are preloaded and sealed, the load is containerized or for improperly permitted over dimensional or overweight loads, or where the trailer or lading is otherwise outside of OWNER's control.
14. **MISCELLANEOUS EXPENSES.** OWNER will be responsible for claims for cargo shortages, all forms of cargo damage, silo or other product contamination, fuel, fuel taxes, empty mileage permits of all types, tolls, ferries, detention and occasional services, base plates and licenses (and any unused portions of such items) and oil, tires, parts, repairs, greasing, and fines for any cause, including over weights and for the payment of all his obligations set out in this agreement. In the event the customer does not assume loading and unloading responsibilities, OWNER shall be responsible for the loading or unloading of commodities transported on behalf of CARRIER at OWNER's sole expense. OWNER waives all rights of exemption under the Constitution and Laws of the State of Texas or any other State, and agrees to pay a reasonable attorney's fee, If the employment of any attorney is necessary to collect same, including cost for appeals.
15. **NON-DISCRIMINATION.** The Non-Discrimination clause contained in section 202 of executive order 11246 incorporated herein by reference.
16. **OTHER PRODUCTS, EQUIPMENT SERVICES.** Except as otherwise stated, OWNER is not required to purchase or rent any product, equipment or services from CARRIER as a condition of entering or reviewing this agreement. In the event OWNER elects, at

its sole discretion to purchase or rent equipment or any services from CARRIER or from any third party for which the purchase or rental contract gives CARRIER the right to make deductions from OWNER's settlement and/or payment, then the parties mutually

agree to attach and incorporate each such contract, specifying all terms thereof, to this Agreement as a separate exhibit or addendum.

17. INSURANCE. \$1,000,000 General Liability, \$100,000 Cargo, \$60,000 Trailer Interchange.

18. SAFETY MEETINGS. Safety meetings are held three (3) times per year. The failure of any OWNER or driver to attend these safety meetings Will constitute a breach of this agreement and will subject the OWNER to immediate termination of this agreement unless the non-attending driver or OWNER is able to produce documentation to substantiate the individual's failure to attend said meeting was for good cause. CARRIER reserves the right, in its sole discretion, to determine what constitutes good cause for failure to attend. Meetings are also designed to ensure compliance with the Federal motor carrier safety requirements found in Title 49 of the Code of Federal Regulations and to provide a level of safety awareness to OWNER and its drivers that promote public safety.

19. INDEMNIFICATION Unless any such claim is covered by the insurance arrangements set forth in Exhibit B with no expense to CARRIER, OWNER agrees to indemnify and hold harmless CARRIER from and against any and all losses, claims, demands, liability, suits, damages, expenses, Including attorney fees, causes of action, fines, or judgments for injuries to persons, including death, or property arising out of or in connection with OWNER's performance of the duties set forth in this agreement or

any breach of this agreement by OWNER. OWNER and CARRIER agree that OWNER's indemnification obligations hereunder shall survive the termination of this agreement. Notwithstanding the above, CARRIER agrees to limit OWNER's indemnification obligations for any property damage or personal injury claim related to an accident involving OWNER or its drivers as set forth in Paragraph 23 below.

20. **USE OF CARRIER'S TRAILERS** to the fullest extent permitted by law, OWNER agrees to return any trailer provided for its use by CARRIER in the same good condition received by OWNER, reasonable wear and tear excepted, along with any and all other equipment and property belonging to CARRIER immediately upon CARRIER's request or upon termination of this agreement. In the event the trailer is not in as good as condition as it was delivered by CARRIER, as determined solely by the CARRIER, OWNER hereby authorizes CARRIER to restore the trailer to proper condition and to charge back to OWNER the full cost of such repair, reconditioning and/or replacement. In the event OWNER for any reason fails to comply with this provision and return CARRIER's trailer or other property, OWNER agrees to reimburse CARRIER for all reasonable expense and cost incurred by CARRIER in recovery of its trailer or property from OWNER or its drivers. OWNER agrees that in the event it is necessary for CARRIER to enter upon private property or remove private property in order to recover its trailer and property, OWNER does hereby irrevocably grant CARRIER or its duly authorized agents' permission to do so, and further agrees to save and hold harmless CARRIER, or its duly authorized agents, from any form of liability whatsoever in connection with such repossession. CARRIER shall provide OWNER with a written explanation and itemization of any damage to the trailer which will be charged back to OWNER under this provision. OWNER agrees and warrants that any trailer provided for use by CARRIER will only be used by OWNER and its drivers to transport shipments tendered to OWNER by CARRIER.

21. **CARGO CLAIMS**. OWNER shall immediately report all cargo claims, including all shortages, overages, or other exceptions to the cargo to CARRIER. OWNER shall be

liable for, and CARRIER shall charge back to OWNER, the full amount of each cargo claim, minus any insurance payments made by any policy maintained and paid for by OWNER to the CARRIER, including but not limited to, delay, shortages, errant delivery, and any direct damage claim related to loss, damage or contaminated loads, arising out of, or in connection with OWNER's services. Before deducting

any cargo claims from OWNER's settlement, CARRIER shall provide OWNER With a written explanation and itemization of each such claim.

22. **ACCIDENTS AND CLAIMS** OWNER shall immediately report any accident or potential claim to CARRIER involving operations under this agreement and, upon CARRIER's request, complete a written report of each such accident or claim. OWNER shall be liable for, and CARRIER shall charge back to OWNER, the first \$1,000 of any property damage or personal injury claim, excluding damage to the equipment or CARRIER's trailer and safety, operation and or appliances related to the use of the CARRIER's trailer(s), related to an accident Involving OWNER or its drivers. This liability limitation shall not apply, however, if the damage or claim is caused, in whole or in part, by any willful, reckless or intentional act or omission of OWNER or its drivers, as determined by CARRIER at its sole discretion. OWNER shall cooperate fully with CARRIER in any legal action, regulatory hearing or other similar proceeding arising from an accident or from the operation of the equipment under this agreement. OWNER shall, upon CARRIER' s request and at OWNER's sole expense, provide written reports or affidavits, attend hearings and trials and assist in securing evidence or obtaining the attendance of witnesses.

23. **BREACH** Notwithstanding anything to the contrary in this agreement, this agreement

may be terminated, at any time, by either party in the event of a breach by the

other of any term or obligation contained in this agreement. In the event of a breach and when practicable, written notice shall be served upon the breaching party, notifying such party of the breach and the termination of the agreement and reason(s) therefore. In CARRIER's sole judgment, OWNER has subjected CARRIER to liability because of OWNER's acts or omissions, CARRIER may take possession of the lading entrusted to OWNER and complete performance, using the Equipment or any other equipment. In such event, OWNER shall waive any recourse against CARRIER for such action and OWNER shall reimburse CARRIER for all direct or indirect costs, expenses, or damages including reasonable attorney's fees uncured by CARRIER

as a result of CARRIER's taking possession of the lading and completing
performance.

- 24. SECTION HEADINGS.** The section headings contained in this agreement are for reference purposes only and shall not in any way affect the meaning or interpretation of this Agreement.
- 25. SEVERABILITY.** This Agreement shall be construed according to the laws of (State) Texas. In the event that any provision of this agreement is held invalid, the other provisions and applications of this agreement shall remain in full force and effect.
- 26. COUNTERPARTS.** This agreement may be executed in one or more counterparts, each of which shall be deemed to be an original, but all of which together shall constitute one and the same instrument. The preparation of this agreement form shall not be

construed in favor of, or against, either party hereto.

27. **NON-WAIVER**. The failure or refusal of either party to insist upon the strict performance of any provision of this agreement, or to exercise any right in any one or more instances or circumstances shall not be construed as a waiver or relinquishment of such provision or right, nor shall such failure or refusal be deemed a customary practice contrary to such provision or right.

28. **DISPUTE RESOLUTION**. Any dispute arising out of or relating to this agreement, including but not limited, any personal injury or property damage claim, any allegation of breach thereof or any alleged violation of any governmental regulation cited herein, shall be fully and finally resolved by arbitration in accordance with the commercial arbitration rules of the American Arbitration

Association ("AAA"). A demand for arbitration shall be filed with the AAA's office located in or nearest to CARRIER's principal place of business or as otherwise agreed to between the parties. The demand shall be filed no later than one (1) year after the dispute arises or the claim occurs. Failure to file the demand within the one (1) year period shall be deemed a full waiver of the claim. Both parties agree to be fully and finally bound by the arbitration award, and, where allowed by law, judgment may be entered on the award in any court having jurisdiction thereof. The parties shall share the cost of arbitration equally. The parties agree that no consolidated or class arbitration shall be conducted. If a court or arbitrator decides for any reason not to enforce this ban on consolidated or class arbitration, the parties agree that this mandatory arbitration provision, in its entirety, shall be null and void, and any disputes between the parties shall be resolved by court action in a court of competent

jurisdiction in Texas, rather than arbitration. Notwithstanding the above, CARRIER may forego arbitration and pursue litigation against OWNER to recover CARRIER's property or any monies that are owed to CARRIER by OWNER under this agreement. This agreement shall be deemed to have been drawn in accordance with the statutes and laws of the State of Texas and, in the event of any disagreement or litigation, the laws of this state shall apply.

29. **ENTIRE AGREEMENT**. This agreement (including all Exhibits hereto) contains the entire agreement between the parties and may not be modified or amended except by written agreement executed by one of CARRIER's officers, and OWNER. Any other modification or amendment, except as set forth herein, Will not be valid or binding upon the parties.
30. **REVOCATION**. Either party to this agreement may revoke said agreement within seven (7) days of entering into this agreement, for any reason, with no adverse legal impact on either party, by serving written notice, via certified mail, of said revocation upon the parties who signed this agreement. OWNER agrees and acknowledges that during this seven-day revocation period he or she will neither ask for, nor will be assigned, any hauling and or transportation assignments by the CARRIER. OWNER further agrees, stipulates and understands that he or she is entitled to have this agreement reviewed, at the OWNERS'S sole expense, by any attorney of his or her choice during the seven (7) day revocation period.

IN WITNESS HEREOF the parties agree to have executed this Agreement duplicate on the 24TH day of NOVEMBER, 2025 at 12165 W Driver's Haul Of Fame St in the city of Odessa, County Ector, State of Texas at 8:45AM.

CARRIER

LONE STAR ROADSIDE LLC
12165 W DRIVER'S HAUL OF FAME ST
ODESSA, TEXAS 79763
(305)889-9070

By  _____
Henry Marrero
Tittle Manager

OWNER

EDAR GADIEL VILLAREAL ROCHA
5727 S BRONCO DR
HOBBS, NM 88240
(423)303-9979

BY _____

